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* **IN THE HIGH COURT OF DELHI AT NEW DELHI**

+ W.P.(CRL) 2336/2022, CRL.M.As. 20370/2022 & 20371/2022

AMANDEEP SINGH KOHLI AND OTHERS Petitioners

Through: Mr. Vineet Aggarwal, Mr. Ajay Chawla, Mr. Kunal Chauhan and Mr. Jatin Kumar, Advocate.
Petitioners in person.

versus

THE STATE (NCT OF DELHI) AND ANR. Respondents

Through: Mr. Rahul Tyagi, ASC for the State with Aashish Chojar and Mr. Jatin Khatri, Advocates alongwith SI Pushpendra, P.S. Jagatpuri.
Mr. Manish Srivastava, Advocate for R-2 alongwith the respondent no. 2 in person.

CORAM:

HON'BLE MR. JUSTICE SUDHIR KUMAR JAIN

ORDER

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10.10.2022

1. The present petition is filed under Article 226 read with section 482 Cr.P.C for quashing of FIR bearing no. 278/2017 registered under sections 406/498A/34 IPC at P.S. Jagatpuri alongwith consequential, judicial proceedings stated to be pending in the Court of Ms. Anamika, M.M, Karkardooma Courts, Delhi and is fixed for 01.11.2022.
2. Issue notice.
3. Mr. Rahul Tyagi, Additional Standing Counsel assisted by Investigating Officer, SI Puspendra accepts notice on behalf of respondent

no.1/State. The respondent no. 2 is present in person alongwith counsel and accepts notice.

4. The petitioner no. 1 and the respondent no.2 got married on 04.05.2014 at Delhi according to Hindu/Sikh rites and ceremonies and out of their marriage no issue was born. The petitioner no.1 and the respondent no.2 due to matrimonial differences started to live separately since 22.03.2017 without any cohabitation.

5. The respondent no. 2 filed a petition under section 12 of the Protection of Women from Domestic Violence Act, 2005 bearing no. 1652/2017 against the petitioner no. 1 and his family members which was stated to be pending in the Court of Ms. Deepti Devesh, MM, Karkardooma Courts, District Shahadra and appeal bearing no. 6/2020 under section 29 of Protection of Women from Domestic Violence Act, 2005 which was stated to be pending in the Court of Shri Naveen Gupta, ASJ, Karkardooma Courts. The petitioner no. 1 also filed a divorce petition bearing no. 1344/2017 which was stated to be pending in Family Courts, Gaziabad, UP. The counsel for the petitioners and the respondent no. 2 stated that these petitions have already been withdrawn.

6. The FIR bearing no. 278/2017 was got registered at the instance of the respondent no. 2 at P.S Jagatpuri under sections 498A/406/34 IPC wherein the petitioners were implicated. The petitioners no. 2 to 5 are the family members of the petitioner no. 1. The petitioners and the respondent no. 2 are identified by the Investigating Officer Pushpendra, P.S. Jagatpuri and their respective counsel. After completion of investigation, the charge-sheet was filed and the trial is stated to be pending in the Court of Ms. Anamika, M.M, Karkardooma Courts, Delhi.

7. The petitioner no. 1 and the respondent no. 2 have already settled their pending disputes vide Compromise/Settlement Deed dated 15.03.2022 whereby they have agreed to dissolve their marriage by decree of divorce by mutual consent as per Section 13B of the Hindu Marriage Act, 1955.

8. The petitioner no.1 has also agreed to pay Rs.7,50,000/- to the respondent no.2 towards full and final satisfaction of all her legal entitlements (past present and future) arising out of their marriage including permanent alimony/maintenance/stridhan and all other legal and miscellaneous expenses. The petitioner no. 1 has already paid Rs. 5,00,000/- to the respondent no. 2 which is also acknowledged by the respondent no. 2. The petitioner no. 1 also delivered a Demand Draft amounting to Rs. 2,50,000/- bearing no. 000051 dated 06.10.2022 drawn on Axis Bank, Nirman Vihar, Delhi towards the payment of balance settled amount to the respondent no.2 which is accepted by the respondent no. 2.

9. The marriage between the petitioner no.1 and the respondent no.2 has already been dissolved by way of divorce by mutual consent as per section 13B(2) of the Hindu Marriage Act, 1955 vide judgment dated 06.08.2022 titled as **Amandeep Singh Kohli and Gurpriya Kaur** in HMA bearing No.962/2022 passed by the Court of Mr. Ajay Pandey, Judge, Family Courts, Karkardooma Courts, New Delhi.

10. The counsel for the petitioners and the respondent no. 2 stated that the petitioner no. 1 and the respondent no. 2 have already settled their disputes vide Settlement/Compromise Deed dated 15.03.2022, the terms and conditions of which have already been executed. The petitioner no. 1 has already paid the entire settled amount to the respondent no. 2 and the marriage between the petitioner no. 1 and the respondent no. 2 has already

been dissolved vide judgment dated 06.08.2022 as such, the present petition be allowed and FIR bearing no. 278/2017 be quashed alongwith consequential proceedings.

11. The respondent no.2 also stated she has settled with the petitioner no. 1 out of her own free will without any force, fear and coercion and she has already received the entire settled amount as such, she does not have any objection if the FIR bearing no. 278/2017 is quashed.

12. The Additional Standing Counsel appearing on behalf of the respondent no.1/State stated that the petitioner no. 1 and the respondent no. 2 have already settled their disputes as such, he does not have any objection if the present petition is allowed and FIR bearing no. 278/2017 alongwith consequential, judicial proceedings is quashed.

13. The petitioner no. 1 and the respondent no. 2 got married on 04.05.2014 and due to matrimonial differences, they started to live separately since 22.03.2017 without any cohabitation. The petitioner no. 1 and the respondent no. 2 have already settled their disputes vide Compromise/Settlement Deed dated 15.03.2022 and their marriage has already been dissolved as detailed hereinabove. The petitioner no. 1 has already paid the entire settled amount to the respondent no. 2. The pending litigations between the petitioners and the respondent no. 2 is already disposed of. No useful purpose shall be served if the consequential proceedings including judicial proceedings in pursuance of FIR bearing no. 278/2017 are allowed to be continued and it would be an exercise in futility. After considering all facts and in the interest of justice, the present petition is allowed and FIR bearing no. 278/2017 dated 23.09.2017 registered under sections 498A/406/34 IPC at P.S. Jagatpuri, Delhi alongwith consequential

proceedings including judicial proceedings stated to be pending in the Court of Ms. Anamika, M.M, Karkardooma Courts, Delhi/Successor Court is quashed.

14. The present petition alongwith pending applications, if any, stands disposed of.

SUDHIR KUMAR JAIN, J

OCTOBER 10, 2022/sk/m